COURSE OUTLINE



LEGL1502

Litigation II

Fall 2020 - Fall 2020

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LEGL1502 Litigation II

COURSE DESCRIPTION

This course builds on the knowledge gained in Litigation I and takes the learner from the interlocutory application phase of the litigation process through to appeals. The Provincial Court of Alberta litigation processes are also examined, as well as the application of the Alberta Rules of Court in the preparation of key documents used in civil litigation.

REQUISITES	Completed the following: • LEGL1501 - Litigation I (3)
EQUIVALENTS	Completed at least 1 of the following: • LEGL252 - Litigation II (3)
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	Yes

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong learners. In addition to the discipline-specific skills that learners acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Prepare documents required for a Provincial Court civil action from legal disputes to trial	Communication (1), Thinking Skills (2), Digital Literacy (5)
2	Identify the rules for various litigation procedures	Communication (1), Thinking Skills (2)
3	Prepare Court of Queen's Bench documents for complex litigation cases	Communication (1), Thinking Skills (2), Numeracy and Financial Literacy (3), Digital Literacy (5)
4	Identify the procedures and documents required for appeals at all levels of court	Communication (1), Thinking Skills (2)

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Module 1: Litigation I Review
Week 2	Module 2: Provincial Court of Alberta
Week 3	Module 2: Provincial Court of Alberta
Week 4	Module 3: Technical Rules and Lawyer of Record
Week 5	Module 4: Co-Defendants, Third Parties, Counterclaims, and Close of Pleadings
Week 6	Module 5: Case Management, Dispute Resolution, and Formal Offers
Week 7	Midterm Exam
Week 8	Module 6: Dealing with Experts
Week 9	Reading Week
Week 10	Module 7: Special Topics for Personal Injury Files
Week 11	Module 8 Judgments and Orders, Ex Parte Applications and Fiats
Week 12	Module 9: Costs
Week 13	Module 10: Appeals
Week 14	Module 11: Jury Trials and Class Action Lawsuits
Week 15	Final Exam

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
2	Class Activities	6%
1-4	Assignments	30%
1-4	Mid-Term Exam	24%
2-4	Final Exam	40%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

Alberta Rules of Court – online

No Textbook Required for this course. Bow Valley College Learning Modules available in D2L.

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Learners with a disability (learning, physical, and/or mental health) may qualify for academic and exam accommodations. For more information, or to apply for accommodations, learners should make an appointment with Accessibility Services in the Learner Success Services (LSS) Department. Accessibility Services can also assist learners who may be struggling with learning but do not have a formal diagnosis. To make an appointment visit LSS on the first floor of the south campus or call 403-410-1440. It is the learner's responsibility to contact Accessibility Services and request academic accommodations. For more information, please visit our website at http://www.bowvalleycollege.ca/accessibility.

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Learners are urged to become familiar with and uphold the following policies: Academic Honesty (500-1-7), Learner Code of Conduct, Procedures and Guidelines (500-1-1), Learner Appeals (500-1-12), Attendance (500-1-10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13). Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by learners is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior written consent from the instructor.

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student papers. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, bowvalleycollege.ca.

Learners are encouraged to keep a copy of this course outline for future reference.